

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Justin Huang	Team: Squad #4	CCRB Case #: 202107408	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 11/25/2021 1:00 AM	Location of Incident: § 87(2)(b)	Precinct: 40	18 Mo. SOL 5/25/2023	EO SOL 5/25/2023	
Date/Time CV Reported Thu, 11/25/2021 1:00 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 12/06/2021 11:16 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Muhammad Malik	23102	962567	040 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO John Sosa	02642	962115	040 PCT

Officer(s)	Allegation	Investigator Recommendation
A. PO Muhammad Malik	Abuse: Police Officer Muhammad Malik threatened to seize § 87(2)(b)'s property.	§ 87(2)(b)

Case Summary

On November 25th, 2021, § 87(2)(b) filed this complaint with IAB, generating log #2021-26533. On December 6th, 2021, the CCRB received this complaint from IAB.

On November 25th, 2021, at approximately 1:00AM, § 87(2)(b) and his girlfriend, § 87(2)(b) were inside § 87(2)(b)'s apartment at § 87(2)(b), in the Bronx. Police Officers Muhammad Malik and John Sosa, both from the 40th Precinct, arrived and told them someone called 311 to file a noise complaint and asked them to turn down the music volume. During the conversation, PO Malik threatened to take § 87(2)(b)'s speakers if he did not turn down the volume (**Allegation A: Abuse of Authority**, § 87(2)(g)).

There was no arrest made or summons issued as a result of this incident.

The CCRB received negative results for BWC footage regarding the incident (**BR01-02**).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Muhammad Malik threatened to seize § 87(2)(b)'s property.

§ 87(2)(b) (**BR03**) stated that he and § 87(2)(b) were preparing ingredients for Thanksgiving Dinner when he heard someone knock on the apartment door. Upon opening the door, § 87(2)(b) and § 87(2)(b) saw PO Malik and PO Sosa standing in the doorway. PO Malik told § 87(2)(b) that they were responding to a noise complaint and told § 87(2)(b) to shut off the music playing on their speaker. § 87(2)(b) responded that it was the day before Thanksgiving and that he and § 87(2)(b) were just preparing ingredients for dinner. § 87(2)(b) told PO Malik that they would turn down the noise. PO Malik and PO Sosa left, and § 87(2)(b) closed the door. § 87(2)(b) and § 87(2)(b) went back to the kitchen and resumed their work. § 87(2)(b) went to put something in the oven and planned to turn down the music immediately afterwards. After approximately 1 to 2 minutes later, § 87(2)(b) and § 87(2)(b) heard knocking on the door again. Upon opening the door, § 87(2)(b) and § 87(2)(b) saw PO Malik and PO Sosa standing at the door again. PO Malik yelled at § 87(2)(b) to lower the volume of his music. § 87(2)(b) explained that he was putting a cake into the oven and was going to turn down the volume afterwards. PO Malik told § 87(2)(b) that he could go in and take his speaker. § 87(2)(b) responded that PO Malik could not come inside and take his property.

§ 87(2)(b) declined to participate in this complaint (**BR04**).

PO Malik (**BR05**) stated that he threatened to take the speaker from § 87(2)(b) and § 87(2)(b)'s apartment but was not actually planning on carrying out the action because he only wanted to gain compliance in terms of § 87(2)(b) and § 87(2)(b) turning down the music volume. PO Malik also stated that he would not be allowed to enter a private dwelling to seize a speaker.

Patrol Guide Procedure 214-23 (**BR06**) states that “warrantless entry into a private premises is not authorized solely for the purpose of abating a noise condition or seizing a sound reproduction device.”

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) has been a party (**BR07**).
- PO Malik has been a member of service for five years and has been a party to one CCRB investigation and one allegation, which was not substantiated. § 87(2)(g)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- On April 4th, 2022, a FOIL request was submitted to the Office of the Comptroller. Results will be attached upon receipt (**BR09**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 4

Investigator:	Justin Huang	Investigator Huang	04/06/2022
	Signature	Print Title & Name	Date

Squad Leader:	Raquel Velasquez	IM Raquel Velasquez	
04/06/2022	Signature	Print Title & Name	Date

Reviewer:			
	Signature	Print Title & Name	Date